

FIRST ENDORSEMENT

Chief Prosecutor Andre D. Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Officer, February 13, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS Numbers 2022-25285 and 2022-25859 against Police Officer Dennis Vargas, Tax Registry Number 957245. On January 30, 2024, Assistant Deputy Commissioner-Trials Vanessa Facio-Lince, approved the dismissal of the charges in return for a negotiated penalty of a Command Discipline Schedule (B) with the forfeiture of TEN (10) vacation days in DADS No. 2022-25859 and the negotiated penalty of a Command Discipline (B) with the forfeiture of SIX (6) vacation days in DADS No. 2022-25285, with these sentences to run concurrent to each other, for a total penalty of a Command Discipline (B) with the forfeiture of TEN (10) vacation days.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor, APU

New York City Civilian Complaint Review Board

DISAPPROVED

Edward A. Caban
JUL 29 2024
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25285
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, VARGAS	FIRST DENNIS	M.I.	COMMAND PBBX SPECIALIZED UNITS
SHIELD NO. 7471	TAX REGISTRY NO. 957245	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2014	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Dennis VARGAS, on or about April 8, 2020, at approximately 2350, while assigned to 042 PCT and on duty, in the vicinity of East 165th Street and Boston Road, Bronx County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Dennis VARGAS, on or about April 8, 2020, at approximately 2350, while assigned to 042 PCT and on duty, in the vicinity of East 165th Street and Boston Road, Bronx County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	
3 . Police Officer Dennis VARGAS, on or about April 8, 2020, at approximately 2350, while assigned to 042 PCT and on duty, in the vicinity of East 165th Street and Boston Road, Bronx County, abused his authority as a member of the New York	DISMISSED	

DC Burris

FIRST DEPUTY COMMISSIONER

6/27/24

DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)

Edward A. Cab...

POLICE COMMISSIONER

7/29/24

DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25285
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, VARGAS	FIRST DENNIS	M.I.	COMMAND PBBX SPECIALIZED UNITS
SHIELD NO. 7471	TAX REGISTRY NO. 957245	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2014	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

SPECIFICATION		DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
City Police Department, in that he refused to provide his name to § 87(2)(b) without sufficient legal authority.			
4 . Police Officer Dennis VARGAS, on or about April 8, 2020, at approximately 2350, while assigned to 042 PCT and on duty, in the vicinity of East 165th Street and Boston Road, Bronx County, abused his authority as a member of the New York City Police Department, in that he refused to provide his shield number to § 87(2)(b) without sufficient legal authority.		DISMISSED	
5 . Police Officer Dennis VARGAS, on or about April 8, 2020, at approximately 2350, while assigned to 042PCT and on duty, in the vicinity of East 165th Street and Boston Road, Bronx County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.		DISMISSED	

DC Bussio 6/27/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)

Edward A. Caber 7/29/24
POLICE COMMISSIONER DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25859
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, VARGAS	FIRST DENNIS	M.I.	COMMAND PBBX SPECIALIZED UNITS
SHIELD NO. 7471	TAX REGISTRY NO. 957245	SOCIAL SECURITY NO.		DATE APPOINTED 07/09/2014
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Dennis VARGAS, on or about September 22, 2021, at approximately 1158, while assigned to 42 PCT and on duty, in the vicinity of 100 Church Street, New York County, provided an Inaccurate Statement to the Civilian Complaint Review Board in that Police Officer VARGAS stated that they did not recall interacting with civilians matching the description of § 87(2)(b) on or about April 11, 2020, at approximately 0200, in the vicinity of § 87(2)(b) Bronx County.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Brown
FIRST DEPUTY COMMISSIONER

6/27/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

7/29/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner June 27, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case Nos. 2022-25285 and 2022-25859 against Police Officer Dennis Vargas, Tax No. 957245, with the recommendation that the Charges and Specifications against Police Officer Vargas be dismissed and that Police Officer Vargas receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

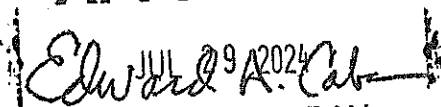
With respect to Case No. 2022-25859, Police Officer Vargas' failure to definitively account for a three (3) minute gap on an AVL log is not a denial, nor is it an inherently inaccurate statement. In this matter, Police Officer Vargas was initially interviewed by CCRB, approximately seventeen (17) months after the incident, and informed CCRB that he was unable to recall the incident in question. When Police Officer Vargas was interviewed a second time, nearly nineteen (19) months after the incident, during which time he reviewed the AVL log, he stated the AVL log did not refresh his recollection. Based on the passage of time, it would stand to reason that Police Officer Vargas' memory would not be exact.

Therefore, it is recommend that Charges and Specifications be dismissed and that Police Officer Vargas receive a Schedule "B" Command Discipline and forfeit six (6) vacation days for Case No. 2022-25285 and receive No Disciplinary Action for Case No. 2022-25859. **RECOMMEND APPROVAL.**

TIK/jpc


Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED


JUL 9 2024
EDWARD A. CABAN
POLICE COMMISSIONER



POLICE DEPARTMENT

July 19, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202002792 (Incident Date: April 8, 2020) involving Detective Merita Hoxha, Tax No. 955988 (DADS Nos. 2022-25284 and 2022-25857), Police Officer Dennis Vargas, Tax No. 957245 (DADS Nos. 2022-25285 and 2022-25859), and Detective Anthony Alvino, Tax No. 961613 (DADS Nos. 2022-25286 and 2022-25855)

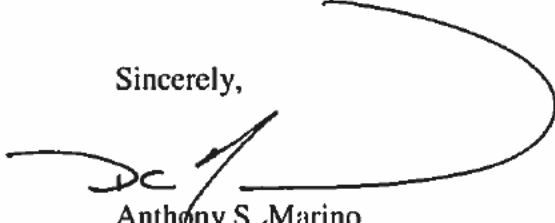
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Detectives Merita Hoxha and Anthony Alvino, and Police Officer Dennis Vargas, and has determined that their actions do not warrant the proposed penalty.

After reviewing the facts and circumstances of the case, the Police Commissioner finds that there is insufficient evidence to demonstrate that the officers made inaccurate statements to the CCRB. However, the Police Commissioner agrees with the remainder of the CCRB's findings.

Therefore, rather than a penalty of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days, the Police Commissioner intends to direct the issuance of a Schedule "B" Command Discipline with the forfeiture of six (6) vacation days against Detective Hoxha, Police Officer Vargas, and Detective Alvino in Disciplinary Case Nos. 2022-25284, 2022-25285, and 2022-25286, respectively. With respect to Disciplinary Case Nos. 2022-25857, 2022-25859, and 2022-25855, pertaining to the allegations of inaccurate statements, the Police Commissioner intends to impose no disciplinary action.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.
James Moschella, Esq.

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 25, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case Nos. 202002792 and 202002669 (Incident Dates: January 22, 2021 and April 8, 2020) involving Detective Merita Hoxha Tax No. 955988 (DADS Nos. 2022-25284 and 2022-25857), Police Officer Dennis Vargas, Tax No. 957245 (DADS Nos. 2022-25285 and 2022-25859), and Detective Anthony Alvino, Tax No. 961613 (DADS Nos. 2022-25286 and 2022-25855)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 19, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department, I am responding to Deputy Chief Marino's notification.

On January 30, 2024 in front of Assistant Deputy Commissioner Vanessa Facio-Lince, Detective Hoxha, Police Officer Vargas and Detective Alvino all accepted the findings of substantiation to the Charges and Specifications on these matters, for a sentence of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days.

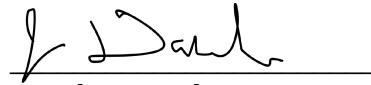
Deputy Chief Marino states that after reviewing the evidence in this case you believe that there is insufficient basis for the charge of Inaccurate Statement on CCRB Case No. 202002792, and further states that you intend to impose no discipline for that charge. Additionally, the letter states that you believe that for the remaining charges you intend to direct the issuance of a Schedule "B" Command Discipline with the forfeiture of six (6) vacation days.

The CCRB disagrees with your assessment that there is insufficient evidence that each respondent provided an inaccurate statement when they each told the CCRB that they did not remember interacting with the civilians. The CCRB investigation uncovered sufficient evidence, through both witness statements and NYPD paperwork, that the respondents did

interact with the complainants and that this interaction would have been significant enough for the each of the respondents to have remembered it. All three respondents, after consulting with their attorneys, voluntarily signed paperwork accepting the findings of substantiation to this charge. Each respondent then again accepted the findings of substantiation in open court.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Detective Hoxha, Police Officer Vargas and Detective Alvino and impose upon each respondent a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board